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legislation - Housing rights could be added to California Constitution

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California voters could decide if having a place to live should be a constitutional right for residents.

Working its way through the Legislature is a proposed constitutional amendment that guarantees a “fundamental human right to adequate housing for everyone in California.”

The measure holds state and local governments responsible for fulfilling a right to housing, which could include boosting housing production, tenant protections, repurposing vacant properties and housing subsidies.

If adopted by voters, California would be the first state to guarantee the right to housing in a constitution.

“California is at the epicenter of the housing crisis,” said Assemblymember Matt Haney, D-San Francisco, who introduced the legislation. “We have more Californians living on the street than anywhere else in the nation.”

California has the highest rate of people experiencing homelessness in the U.S., with 30% of all people in the U.S. experiencing homelessness residing in California as of last year. Though statistics show Orange County has seen a decline in its homeless population in the past few years, the number of homeless adults with substance use and mental health issues has risen.

It’s unclear exactly how the state would define “adequate housing,” and the Legislature may need to do more work to provide a definition, longtime lobbyist Chris Micheli said.

“Some might view ‘adequate’ as merely having a roof over their head,” Micheli said. “It could be just a gymnasium or a large building, almost like when we have emergencies. What does adequate mean? Is it a stand-alone, single-family dwelling? Is it an apartment?

“But the fact that it will be placed in our constitution along with other personal rights means it will have very significant implications for all Californians.”

The idea, Assemblymember Sharon Quirk-Silva, D-Fullerton, said is to look at housing as a basic need.

“When we think of our basic needs, there (are) really only three basic needs that humans need and that is housing, food and water,” said Quirk-Silva, who supports the measure. “And I think many of us grew up taking that for granted, but what we’ve seen over the last decade in California has not only been a housing crisis but, of course, a homeless crisis. And that’s what propels me to support this.”

Quirk-Silva said there are not enough beds for those who need them, which means many people resort to sleeping on the streets, not only in the summer but in the colder winter months. In Orange County, some 500 people experiencing homelessness died on the streets last year, with Santa Ana and Anaheim topping the list with 100 and 98 deaths, respectively.

Juggling a mandate to guarantee every California resident adequate housing with California’s housing shortage is a big challenge the state faces, Quirk-Silva said.

“We have not kept pace with building housing production in California for the last several decades. And with that, we’ve created a shortage. And with the shortage, we have incredibly high rents. And as those rents continue to

skyrocket because of the shortage, we have several scenarios develop," she said. "One is people are moving out of the state because of affordability. But we also know with the rents that are so high that we have many individuals who are one rent payment away from being homeless."

Home prices in roughly 3 of every 5 Orange County neighborhoods have gone down in the past year, but rents countywide have gone up 0.7% in three months and 27% over the past four years. As of April, the average Orange County rent was $2,595 a month, the highest among 10 big California counties.

The fastest way to protect individuals from becoming homeless is to keep them in their current rentals, Quirk-Silva said.

"Once somebody is a victim, it is very hard for them to not only get back on their feet but certainly to find another rental. So short-term rental assistance could be very valuable to keeping families from entering into homelessness," she said.

The Assembly Committee on Housing and Community Development on Wednesday voted 6-2 to refer the measure to a Senate committee. Republican Assemblymembers Kate Sanchez, R-Rancho Santa Margarita, and Joe Patterson, R-Rocklin, were the no votes.

Though the dozens of people present at the Sacramento hearing representing various housing and community organizations were unanimous in their support, some assemblymembers voiced concerns that the proposal punts responsibility of determining the standard of what constitutes adequate or inadequate housing to the court system.

"I think the state and local governments haven't done a good job on housing, which I think has contributed to homelessness, but I'm concerned about the hundreds of judges we have in California having different ideas about what this means," Patterson said.

"What you all are trying to do here is God's work. It is beautiful and holy and important, and I don't think there's a single person in this room who can say that housing isn't a fundamental human right," Assemblymember Jesse Gabriel, D-Los Angeles, said. "But I think this could really benefit from some additional language that makes it clear when and how judicial review would happen, when a court could overrule the budget of the Legislature."

Ultimately, the proposed amendment faces a difficult process, Micheli said, because a constitutional amendment requires a two-thirds vote in both the Assembly and Senate to be placed on the ballot.

"Far fewer measures reach the ballot, let alone get passed by the voters themselves," he said. "But to have something enshrined in the constitution is very significant."

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